

File No.: EXP202212557

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On November 17, 2022, a complaint was received by the Spanish Agency for Data Protection (hereinafter, AEPD) with registration number REGAGE22e00052242937, submitted by A.A.A., with NIF ***NIF.1 (hereinafter the complainant) because the COMMUNITY OF OWNERS H.H.H., with NIF ***NIF.2 (hereinafter the Community of Owners or the complained party) would have violated Article 6.1 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (hereinafter, GDPR).

In particular, due to the following circumstances:

The complainant states that in the complained Community of Owners, a video surveillance system has been installed in common areas, without prior agreement from the property owners in accordance with the provisions of the horizontal property regulations, also noting that there are cameras in this system that would capture public roads. It adds that the information sign installed only indicates an email address belonging to the administration of the Community of Owners as the responsible party.

With the complaint, photographs are provided showing two video surveillance cameras located inside the entrance hall of the building, as well as a photograph detailing the sign warning about the installed video camera system, in which the Community of Owners is identified as the responsible party for the processing and an email address is indicated as a means for exercising rights.

SECOND: In accordance with the preliminary mechanism for the admission of complaints submitted to the AEPD, as provided in Article 65.4 of the LOPDGDD, which consists of forwarding them to the data protection delegates designated by the responsible parties or processors, or to them when they have not designated any, and with the purpose indicated in the aforementioned article, the complaint was forwarded to the COMMUNITY OF OWNERS H.H.H. (hereinafter, the complained party) for analysis and response within one month.

On December 22, 2022, a response was received from the Community of Owners, in which it informed that the cameras would be removed and a Meeting of Owners would be held for approval.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

With this response, documentation was provided regarding the consultation conducted with the neighbors in September-October 2022 to decide whether to maintain the installed cameras or not.

THIRD: On February 17, 2023, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to archive the complaint. The resolution was notified to the complainant on February 17, 2023, as evidenced in the file.

FOURTH: On March 17, 2023, the complainant filed a voluntary appeal for reconsideration, expressing their disagreement with the contested resolution, requesting that the processing of the initial complaint submitted continue, as the complained community of neighbors proceeded to remove the cameras and reinstall them after consulting the neighbors, without such agreement being adopted in a Meeting of Owners, meaning that the agreement was not approved by the majority of three-fifths required for the installation of video surveillance services, despite this majority being required under Article 17.3 of Law 49/1960, of July 21, on horizontal property.

Therefore, the installation of cameras in common areas without reaching that majority would imply that personal data (the image of the neighbors) is being processed unlawfully.

FIFTH: On July 17, 2023, the appeal filed by A.A.A. (RR/00174/2023) was sent to the complained party within the framework established in Article 118.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) for them to make allegations and present the documents and justifications they deemed appropriate. The sending, carried out electronically, was not retrieved by the Community of Owners within the availability period, so the complained party has not presented any allegations.

SIXTH: On September 6, 2023, the appeal for reconsideration, RR/00174/2023, filed by A.A.A. against the resolution of this Agency issued on February 17, 2023, which agreed to archive the complaint regarding the COMMUNITY OF OWNERS H.H.H., is GRANTED, so that the processing of their complaint before the AEPD continues.

SEVENTH: On September 12, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the complained party for the alleged infringement of Article 6.1 of the GDPR classified in Article 83.5 of the GDPR.

EIGHTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of the art.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
3/11

43.2 of the LPACAP on December 17, 2024, as stated in the certificate included in the file.

NINTH: On December 13, 2024, a document was received by the AEPD, sent by the COMMUNITY OF OWNERS H.H.H., consisting of a copy of the minutes of the Extraordinary Meeting of said community of neighbors, dated December 30, 2022, where it is indicated that the installation of security cameras in the common areas of the building was approved by 21 votes in favor (66.03%) and one against.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

FIRST: In the claimed Community of Owners, a video surveillance system has been installed in common areas, without prior agreement from the property owners in accordance with the provisions of the horizontal property regulations. In relation to this system, in September-October 2022, the Community of Owners conducted a consultation with the neighbors to decide whether to maintain the installed cameras or not.

SECOND: On December 30, 2022, the Community of Owners held an Extraordinary Meeting in which the installation of security cameras in the common areas of the building was approved by 21 votes in favor (66.03%) and one against. This agreement was approved by the majority of three-fifths required for the installation of video surveillance services, the majority required in Article 17.3 of Law 49/1960, of July 21, on horizontal property.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic

law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

4/11

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, erasure or destruction;”

The images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

For the processing of personal data to be lawful, it must fall under one of the cases outlined in Article 6.1 of the GDPR, which states the following:

1. The processing shall be lawful only if at least one of the following conditions is met: a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/11

- f) the processing is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that those interests do not override the interests or the fundamental rights and freedoms of the data subject requiring the protection of personal data, particularly when the data subject is a child.

The provisions of letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

The use of video surveillance systems in the common areas of a community of property owners must respect various aspects so that such a recording system complies with the current data protection regulations.

First, it must have the proper legitimacy, so that the installation of cameras in common areas complies with data protection regulations, it will be necessary for such installation to have been approved by an agreement of the Board of Owners, and this agreement must be reflected in the minutes of that Board.

The installation of this video surveillance system requires obtaining a majority of three-fifths, in accordance with Article 17.3 of Law 49/1960, of July 21, on horizontal property.

It is recommended that the agreement reflects some of the characteristics of the video surveillance system, such as the number of cameras or the area covered by them.

Second, prior to its operation, the registration of activities related to this processing must be carried out. This is an internal document. The FACILITA_RGPD tool available on the AEPD website can be used when it does not involve large infrastructures (train stations, shopping centers). The Guide on the use of video cameras for security and other purposes provides a model for the registration of activities. Third, one or more signs must be installed at the various accesses to the monitored area, in a visible place, informing that access is to a video-monitored area.

The sign will clearly indicate the identity of the person responsible for the installation, to whom and where to address to exercise the rights provided for by data protection regulations, and where to obtain more information about the processing of personal data. The AEPD offers a model sign in the Guide on the use of video cameras. Likewise, the remaining information required by data protection legislation will be made available to those affected.

This information may be available at the concierge, reception, offices, bulletin boards, or be accessible via the Internet.

Regarding the installation of the video surveillance system, the cameras may only capture images of the common areas of the community. Images of public roads may not be captured unless it is essential for the pursued purpose, except for a minimal strip of the accesses to the property, nor images of adjacent land and homes or any other external space.

If orientable cameras and/or zoom are used, the installation of privacy masks will be necessary to avoid capturing images of public roads, land, and homes of third parties.

The hiring of an external video surveillance service or the installation of cameras by a third party does not exempt the community of property owners from compliance with data protection regulations.

Regarding the monitors and viewing of images, it should be indicated that access to the images will be restricted to persons designated by the community. Under no circumstances will they be accessible to neighbors via the community television channel.

If access is made via an Internet connection, it will be restricted with a username and password (or any other means that guarantees unique identification and authentication), which will only be known by the persons authorized to access such images.

Once the system is installed, it is recommended to change the password, avoiding easily deducible ones.

In the event that the camera system includes a recording system, it will be located in a monitored or restricted access area. Only authorized personnel will access the recorded images, who must enter a username and password.

The images will be retained for a maximum period of one month from their capture, after which they will be deleted.

Images used to report crimes or infractions will be attached to the report and will be retained for possible delivery to the Security Forces or to the Courts and Tribunals that require them. They may not be used for any other purpose.

Requests for images by the Security Forces will be made within the framework of judicial or police actions. The request to the data controller will be the document that protects them to provide data to them or to the Courts and Tribunals that require them.

III

Alleged infringement of Article 6 of the GDPR

In this case, from the documentation in the file, provided by the complaining party, it is evident that on November 17, 2022, a video surveillance system was installed in the Community of Property Owners, without mediation.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

prior agreement of the Homeowners' Association, with a sign indicating that the area is under video surveillance and that the data controller would be the Community.

The claimant in their complaint states that the homeowners' community in question has proceeded to install cameras in the common areas without an agreement adopted in a meeting of that homeowners' community.

However, subsequently, once the complaint that motivates these proceedings was known, on December 30, 2022, the claimed Community of Owners held an Extraordinary Meeting in which the installation of security cameras in the common areas of the building was approved by 21 votes in favor (66.03%) and one against.

This agreement was therefore approved by the majority of three-fifths required for the installation of video surveillance services, as stipulated in Article 17.3 of Law 49/1960, of July 21, on horizontal property.

Therefore, the installation of cameras in the common areas, since December 13, 2022, upon reaching that majority, implies that from that date personal data (the image of the neighbors) would be processed lawfully.

Consequently, in accordance with the evidence available at the time of the complaint submission in November 2022, the installation of a video surveillance system prior to its valid approval in the homeowners' meeting violated what is established in Article 6 of the GDPR, constituting an infringement classified under Article 83.5 of the GDPR, which states the following:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)."

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679. (...)"

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of safeguarding the security of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with that which motivated the installation of the video surveillance system.

3.- The obligation to inform the affected parties as provided in Articles 12 and 13 of the GDPR and

Article 22 of the LOPDGDD must be fulfilled.

In this regard, Article 22 of the LOPDGDD provides for a “layered information” system concerning video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information must be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principle of proportionality and the principle of data minimization, as already indicated.

5.- The images may be retained for a maximum period of one month, unless in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording was obtained.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/11

6.- The data controller shall maintain a record of activities of the processing carried out under their responsibility, which shall include the information referred to in Article 30.1 of the GDPR.

7.- The data controller shall conduct a risk analysis or, where appropriate, a data protection impact assessment, to identify the risks arising from the implementation of the video surveillance system, evaluate them, and, where applicable, adopt appropriate security measures.

8.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4. The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section “Reports and resolutions” / “regulations”),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the “Guides and tools” section).

It is also of interest, in the case of carrying out low-risk data processing, the free tool Facilita (in the “Guides and tools” section), which, through specific questions, allows the data controller to assess their situation regarding the personal data processing they carry out, and where applicable, generate various documents, informative and contractual clauses, as well as an annex with indicative minimum security measures.

V

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in section 2.b) of Article 58 “Powers” the following:

“Each supervisory authority shall have all of the following corrective powers:

(...)

b) issue a warning to any data controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)”

Furthermore, Article 64 of the LOPDGDD, which regulates the “Form of initiation of the procedure and duration,” states in its third section that:

“3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council,

of April 27, 2016, the Spanish Data Protection Agency, after hearing the data controller or processor, may issue a warning, as well as order the data controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specified manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the proceedings shall be archived.

The provisions of the second and third paragraphs of section 2 of this article shall apply in this case.”

In the present case, given the circumstances present in this procedure, it is deemed appropriate to issue a warning to the accused party for the infringements of Articles 5.1.c) and 13 of the GDPR.

VI

Adoption of measures

In accordance with the provisions of Article 58.2 d) of the GDPR, each supervisory authority may “order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified timeframe...”.

In this case, during the processing of this sanctioning procedure, the accused Community of Property Owners has demonstrated to this Agency that the video surveillance system installed in its common areas has the proper authorization from the Board of Owners, approved in an Extraordinary Meeting held on December 30, 2022. Therefore, the imposition of additional measures is not warranted in this case.

Thus, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

the Presidency of the Spanish Data Protection Agency RESOLVES:

FIRST: TO ISSUE A WARNING to the COMMUNITY OF PROPERTY OWNERS H.H.H., with NIF ***NIF.2, for an infringement of Article 6.1 of the GDPR classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to the COMMUNITY OF PROPERTY OWNERS H.H.H.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

11/11

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

1403-16012024

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es